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SUPPLEMENTARY CHARGE SHEET (EXCERPT)

IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE
FICTIONAL DISTRICT COURTS, RIVERDALE

Case No.:	S.C. 214/1999 (Specimen)
Under Sections:	201 & 409 read with 120-B, Fictional Penal Code (Causing disappearance of evidence; Criminal breach of trust by public servant; Criminal conspiracy)
Police Station:	Riverdale Central P.S. (fictional)
Investigating Officer:	Insp. A. Verma (fictional)
Accused No. 1:	R. Kapoor, cinema hall proprietor (fictional)
Accused No. 2:	M. Thomas, Ahlmad / Record-Keeper, Sessions Court Riverdale (fictional)

1. Brief Facts

This supplementary charge sheet arises from the original trial record pertaining to a fire at a public cinema hall in which a large number of patrons died due to alleged structural and safety lapses (Sessions Case No. 90/1997, Specimen). During scrutiny of the trial court record in 1999, it was found that certain original documents forming part of the case file — including the fire-safety inspection memos of the investigating police party and the hand-drawn seating/exit plan of the hall prepared at the scene — were physically missing from the file cover, with torn stub-edges visible at the binding margin.

Investigation revealed that Accused No. 2, in his capacity as Ahlmad (record-keeper) of the court in which the original trial was pending, had access to the case file between 15 and 22 March 1999. Accused No. 1 is alleged to have met Accused No. 2 on three occasions during this period, as recorded in the courtroom visitor register.

2. Material Findings

(a) The file index (Rojnamcha) prepared at the commencement of trial lists 214 numbered pages; the file as re-examined in 1999 contained only 197 pages, with page numbers 42-46 and 61-63 missing.
(b) A forensic document examiner (Report No. FDE/99/118, Specimen) opined that the stub-edges remaining at the binding indicated the pages had been torn out, not merely misplaced, based on the irregular tear pattern inconsistent with normal wear.
(c) The missing pages, per the original file index descriptions, corresponded to (i) the police memo recording the number and location of emergency exits found sealed at the time of the fire, and (ii) the seating-capacity plan indicating unauthorised additional seating installed by the proprietor.

3. Charges Framed

It is alleged that Accused No. 1 and Accused No. 2, in furtherance of a common intention, caused the disappearance of the aforesaid documents with the intention of screening Accused No. 1 from the offences arising out of the fire, thereby committing offences punishable under Sections 201 and 409 read with 120-B of the Fictional Penal Code. This charge is tried separately from, and without prejudice to, the outcome of the original trial.

[END OF EXCERPT — SPECIMEN DOCUMENT]

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WITNESS STATEMENT

Recorded under Section 161, Fictional Code of Criminal Procedure

Name of Witness: S. Reddy (fictional)

Designation: Junior Copyist, Sessions Court Riverdale (fictional)

Recorded by: Insp. A. Verma, Riverdale Central P.S.

Date: 02 April 1999 (Specimen)

Statement

"I have been working as a Junior Copyist attached to the Sessions Court, Riverdale, for the past six years. The case file relating to the cinema fire matter was kept in the almirah assigned to the Ahlmad, M. Thomas, along with other pending sessions files."

"Sometime in the third week of March 1999, I noticed Accused No. 1 sitting with M. Thomas near the record room on two separate afternoons, which was unusual as parties are ordinarily not permitted inside the record room. On one occasion I saw the cinema-fire file open on the table between them."

"When the file was subsequently required for a hearing in early April, I noticed that it appeared thinner than before and that some pages were missing from the middle portion. I did not say anything at the time as M. Thomas was my senior in the record room and I did not wish to create trouble."

"I am making this statement voluntarily and without any pressure from the investigating officer."

Signature of Witness: _____
Signature of I.O.: _____